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STATE OF MINNESOTA **DISTRICT COURT**

COUNTY OF DAKOTA **FIRST JUDICIAL DISTRICT**

Lexington Flats, Limited Partnership,

Plaintiff,

v.

Dena Sazama, Bradley Crowe, John Doe, Jane Doe,

Defendants.

Court File No. 19AV-CV-25-3477
Case Type: Eviction (UD)
Judge: Dannia Edwards

DEFENDANTS DENA SAZAMA'S AND BRADLEY CROWE'S ANSWER AND MOTION FOR DISMISSAL

Defendants Dena Sazama and Bradley Crowe (collectively, the "Tenants") as and for their Answer to Plaintiff Lexington Flats, Limited Partnership's ("Landlord") eviction Complaint (the "Complaint"), hereby state and allege as follows:

1. Unless admitted or otherwise qualified, Tenants deny each and every allegation set forth in the Complaint and put Landlord to its strictest burden of proof thereof.
2. Tenants admit the allegations contained in Paragraph 1 of the Complaint.
3. Tenants admit the allegations contained in Paragraph 2 of the Complaint.
4. In responding to paragraph 3 of the Complaint, Tenants admit that there is a written lease between the parties. Exhibit A speaks for itself. Tenants deny that Exhibit A is the current, operative lease.
5. Tenants admit the allegations contained in paragraph 4 of the Complaint.
6. Tenants admit the allegations contained in paragraph 5 of the Complaint.
7. Tenants deny the allegations contained in paragraph 6 of the Complaint.
8. Tenants are without knowledge or information to form a belief as to the truth of the

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allegations contained in paragraph 7 of the Complaint, affecting a denial of the same.

9. Tenants deny the allegations contained in paragraph 8 of the Complaint.

10. Tenants deny the allegations contained in paragraph 9 of the Complaint.

11. In responding to paragraph 10 of the Complaint, Tenants admit they remain in possession of the premises and have not vacated. Tenants affirmatively assert they hold the present and ongoing right to legal possession of the premises.

12. In responding to paragraph 11 of the Complaint, Tenants assert that Exhibit C speaks for itself and to the extent a response is required, denies the allegations contained in paragraph 11.

13. In responding to paragraph 12 of the Complaint, Tenants are without knowledge or information to form a belief as to Landlord's knowledge of their military status.

14. In responding to paragraph 1 under Request for Relief of the Complaint, Tenants deny that Landlord is entitled to judgment against them and an Order for possession and an immediate Writ of Recovery.

15. In responding to paragraph 2 under Request for Relief of the Complaint, Tenants deny that Landlord is entitled to any costs or disbursements of the action.

DEFENSES TO THE COMPLAINT

As and for their defenses, Tenants state and allege as follows:

THE COMPLAINT SHOULD BE DISMISSED AS A MATTER OF LAW

1. Landlord asserts this is an eviction action for holdover under Minnesota Statutes Section 504B.285, Subdivision 1. Landlord is required to "[a]ttach a copy of any notice to vacate or notice to quit…" to the Complaint. Minnesota Statutes Section 504B.321, Subdivision 3(5). The requirement to attach the notice is jurisdictional because an eviction complaint for

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holdover that fails to attach the notice shall be dismissed and expunged. Minnesota Statutes Section 504B.321, Subdivision 5. Here, Landlord failed to attach a notice. Instead, Landlord attached Exhibit B, entitled an unexecuted "Mutual Lease Termination Agreement." Landlord's Complaint fails as a matter of law and must be dismissed without prejudice and expunged.

OTHER DEFENSES TO THE COMPLAINT

1. Tenants did not sign any notice agreeing to end the tenancy and surrender possession of the premises to Landlord.
2. Tenants did not receive from Landlord any notice terminating their lease.
3. Landlord accepted rent from Tenants and the Experience of Neshama after the purported lease termination date of October 31, 2025. A landlord's acceptance of future rent after the termination effective date provided in a lease termination notice, renders the notice inoperative and bars the landlord from evicting a tenant on the basis of holdover on the notice. *Pappas v. Stark*, 142 N.W. 1046 (1913).
4. Landlord offered and Tenants signed a new lease with a term beginning November 1, 2025. A subsequent lease waives a prior lease termination. *Arcade Investment Co. v. Gieriet*, 99 Minn. 277, 279 (1906).
5. Landlord's purported lease termination is retaliatory under Minnesota Statutes Sections 504B.285, Subdivision 2 and 504B.441, and was intended in whole or in part as a penalty for Tenants' actions to secure or enforce rights under the lease and state law, including their actions to enforce their rights to repairs. Landlord lacks a substantial non-retaliatory purpose, arising at or within a short time before service of the purported termination notice, wholly unrelated to and unmotivated by Tenants' protected activity. *Parkin v.*

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Fitzgerald, 240 N.W.2d 828 (Minn. 1976); *see also Central Housing Assoc., LP v. Olson*, 929 N.W.2d 398 (Minn. 2019).

6. Landlord lacks the required "good cause" to terminate or not renew the lease because, as Landlord admits in paragraph 5 of its Complaint, this is a tenancy that participates in the Low-Income Housing Tax Credit (LIHTC) program regulated under 26 U.S.C. Sec. 42(h)(6)(E)(ii)(I) that prohibits the eviction or termination of tenancy "other than for good cause" of any existing tenant of a participating unit. This good cause limitation in terminating or not renewing the lease is reflected in the LOW INCOME HOUSING TAX CREDIT LEASE RIDER attached to Ex. A Lease Agreement of the Complaint as well as paragraph 26 of Ex. A Lease Agreement itself that states, in relevant part, "Owner may only agree to non-renewal for good cause."
7. Landlord's claims may be barred by any number of other affirmative defenses under the Minnesota Rules of Civil Procedure, and Tenants reserve their right to assert the same as they are uncovered by discovery.

WHEREFORE, Tenants request judgment as follows:

1. Dismiss and expunge Landlord's Complaint for the reasons set forth in this Answer.
2. Award Tenants judgment for possession of the premises at issue in this action.
3. Do not require Tenants to post a bond. Minnesota Statutes Section 504B.335(e).
4. If further hearing is necessary, order Landlord to provide Tenants the following discovery: (a) copy of Landlord's file on the lease and tenancy, (b) a list of Landlord's witnesses and the subject of their testimony, (c) a copy of Landlord's exhibits, and (d) other discovery on Tenants' request.
5. Schedule an evidentiary trial on a date that allows for a fair, thorough, and timely

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adjudication of the merits of the case, including the complexity of the matter, the need for the parties to obtain discovery, the need for the parties to ensure the presence of witnesses, the opportunity for the defendant to seek counsel and raise affirmative defenses. Minnesota Statutes Section 504B.335(a).

6. Allow Landlord to rely only on the allegations stated in the Complaint in this eviction proceeding. Minnesota Statutes Section 504B.321; *Mac-Du Properties v. LaBresh*, 392 N.W.2d 315 (Minn. Ct. App. 1986) ("The plaintiff must plead and prove facts which show the defendant is in unlawful possession of property."). *See also*, *Minneapolis Cmty. Dev. Agency v. Smallwood*, 379 N.W.2d 554, 555 (Minn. Ct. App. 1985).

Dated: December 2, 2025

SOUTHERN MINNESOTA REGIONAL LEGAL SERVICES

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ACKNOWLEDGEMENT

The undersigned hereby acknowledges that costs, disbursements, and reasonable attorney and witness fees may be awarded, pursuant to Minnesota Statutes Section 549.211, to the parties against whom the allegations in this pleading are asserted.

/s/ Heather Mendiola
Heather Mendiola

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